

1 ENGROSSED SENATE
2 BILL NO. 1436

By: Nice of the Senate

3 and

4 Roe of the House

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6 An Act relating to hospitals; imposing certain duties
7 on hospital in cases of fetal death or miscarriage;
8 requiring the State Department of Health to develop
and publish certain form; providing for codification;
and providing an effective date.

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11 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

12 SECTION 1. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1-702g of Title 63, unless there
14 is created a duplication in numbering, reads as follows:

15 A. When a fetal death occurs in a hospital, or when a woman
16 presents to a hospital for treatment of a miscarriage, the hospital
17 shall, prior to discharge:

18 1. Provide the woman or her designee with a physical or digital
19 copy of the form described in subsection B of this section; and

20 2. Ensure that a hospital staff member verbally communicates
21 that the woman or family may request the certificates listed on the
22 form through the process described on the form.

23 B. The State Department of Health shall, for the purposes of
24 this section, develop and publish on its public website a form that:

1. Explains the process for requesting a fetal death certificate under Section 1-318 of Title 63 of the Oklahoma Statutes and the process for requesting a certificate of birth resulting in stillbirth under Section 1-318.2 of Title 63 of the Oklahoma Statutes; and

2. Provides contact information for the Division of Vital Records of the Department.

SECTION 2. This act shall become effective November 1, 2026.

Passed the Senate the 25th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the ____ day of _____,
2026.

Presiding Officer of the House
of Representatives